

Sheelu v. State of U.P.

Allahabad High Court · Division Bench · 31 July 2025 · 2025:AHC:128220-DB · Writ-C No. 20512 of 2025 · **Writ dismissed; s.135 recovery to be challenged first under the Supply Code.**

HEADNOTE

A writ to quash a recovery certificate issued in proceedings under Section 135 of the Electricity Act, 2003 does not lie where those proceedings have not first been challenged under the Act or the Electricity Supply Code, 2005. The petition was dismissed.

FACTUAL SUMMARY

Sheelu filed a writ petition in the Allahabad High Court seeking to quash a recovery certificate dated 19 March 2025 issued under the Electricity Act. Dakshinanchal Vidyut Vitran Nigam Limited submitted that the recovery had been initiated under Section 135 and that any challenge had first to be raised before the Electricity Department under the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

writ against s.135 recovery

HOLDING

Where recovery proceedings have been initiated under Section 135 of the Electricity Act, a writ to quash the recovery certificate cannot be granted if the consumer has not first challenged those proceedings under the Electricity Act and/or the Electricity Supply Code, 2005. ¶ 4

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy A writ to quash a recovery certificate issued in proceedings under Section 135 of the Electricity Act, 2003 does not lie where those proceedings have not first been challenged under the Act or the Electricity Supply Code, 2005. The petition was dismissed. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 19.03.2025 RECOVERY CERTIFICATE AND THE UNDERLYING S.135 PROCEEDINGS

The Court did not examine the merits of the recovery; it refused writ relief for want of a prior challenge under the Act or the Supply Code. ¶ 4